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| May 12, 2015                |   |   |   |   |   |
| FEDERAL MARITIME COMMISSION |   |   |   |   |   |

**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 14-16**

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**BALTIC AUTO SHIPPING, INC.**

**v.**

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,  
EMPIRE UNITED LINES CO., INC.**

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**ORDER FOR COMPLAINANT TO COMPLY WITH INITIAL ORDER**

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The Initial Order in this proceeding states:

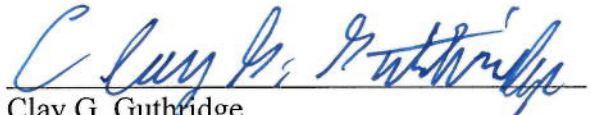
14. A party moving for summary decision must include in a separate document a statement of material facts as to which there is no genuine dispute. This document must set forth in separately numbered paragraphs a concise statement of each material fact as to which the movant contends there is no genuine issue together with a citation to the portion of the motion record (page in the appendix) establishing the fact or demonstrating that it is uncontroverted. Each paragraph must be limited as nearly as practicable to a single factual proposition.
15. A party opposing a motion for summary decision must file a responding statement either admitting or disputing each of the facts in the movant's statement. All material facts in the movant's statement which are sufficiently supported will be deemed admitted for purposes of the motion only, unless specifically disputed by citation demonstrating the existence of a genuine issue as to the fact. An opposing party may also include in the responding statement additional facts that the party contends are material and as to which there exists a genuine issue. Each such fact must be stated in separately numbered paragraphs with a citation to the motion record (page in the appendix) establishing the fact or demonstrating that it is controverted. Each paragraph must be limited as nearly as practicable to a single factual proposition.

*Baltic Auto Shipping, Inc. v. Michael Hitrinov a/k/a Michael Khitrinov and Empire United Lines Co., Inc.*, FMC No. 14-16 (ALJ Dec. 5, 2014) (Initial Order).

On March 23, 2015, respondents Empire United Lines Co., Inc., and Michael Hitrinov a/k/a Michael Khitrinov (together Empire) filed a Motion for Partial Summary Decision. Although Empire did not put the statement of material facts in a separate document as required by paragraph 14 of the Initial Order, Empire did include a statement of material facts as to which there is no genuine dispute in separately numbered paragraphs with a citation to the portion of the motion record. (Memorandum in Support of Respondents' Motion for Partial Summary Decision Dismissing Complaint and Reparations at 2-8.) On May 6, 2015, complainant Baltic Auto Shipping, Inc. (Baltic) filed its response to the motion for partial summary decision. I do not find a responding statement either admitting or disputing each of the facts in the movant's statement as required by paragraph 15 of the Initial Order. Therefore, it is hereby

**ORDERED** that Baltic file the response to Empire's statement of material facts as to which there is no genuine dispute required by paragraph 15 of the Initial Order. Baltic must accomplish this filing without delay, but no later than May 18, 2015. The parties should note that in another order issued today, the time for Empire to reply to Baltic's opposition has been enlarged to May 26, 2015.

I note that on March 23, 2015, counsel for Empire sent a word processing version of Empire's memorandum containing the statement of material facts to counsel for Baltic. Baltic should likewise send word processing versions of its response to the motion and the statement of material facts to counsel for Empire and to [judges@fmc.gov](mailto:judges@fmc.gov).

  
Clay G. Guthridge  
Administrative Law Judge